

PPR053973 In the Matter of Micaela Gomez Living Trust

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-09-24

Motion: Maria Gomez Sanchez's Continued Motion for Order Voiding Judgment and Confirming Existence of Trust and Directing Conveyance of Real Property to Trust

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Re: In the Matter of Micaela Gomez Living Trust

Case No.: PPR053973

Date: September 24, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Maria Gomez Sanchez's Continued Motion for Order Voiding Judgment and Confirming Existence of Trust and Directing Conveyance of Real Property to Trust

Tentative Ruling: To grant the motion and void the judgment in this matter; to deny the motion as to confirmation of the existence of the trust, directing conveyance of property and the Probate Code section 859 damages; to conduct a case management conference as to the setting of an evidentiary hearing as to Sonia Lozano's petition to invalidate the Trust on capacity and undue influence grounds.

Facts re: Petition for Non-Existence of Trust

On March 2, 2026, Petitioner Sonia Lozano filed a verified petition for order approving termination of trust, to reallocate trust property and for non-existence of trust under Probate Code sections 15403 and 17200(b).

The petition states Micaela Gomez, Trustee of the Micaela Gomez Living Trust, ("Decedent") passed away on October 03, 2025. (Petition ¶1.)

Further, that on May 24, 2022, Quitclaim Deed, Document 2022 0033487 was recorded transferring decedents primary residence, real property commonly known as: 16554 Dillon Ave, Visalia, California 93292, APN 111-202-029-000 ("Subject Property") to the "Micaela Gomez Living Trust, dated April 12, 2022" ("Trust"). (Petition ¶2.)

The petition further alleged that there was no known record of the Trust and no known will for Decedent, despite a search of Decedent's personal property. (Petition ¶¶3-5.)

The Petition indicates personal service pursuant to Probate Code section 851 "on all parties" as to the following:

Sonia Lozano, Petitioner 373 E. Worth Ave. Porterville, CA 93257

Guadalupe Gomez 8781 Emerald Rd. Sunnyside, WA 98944

Maria Elva Gomez 4021 NE 65th Ave. Vancouver, WA 98661

Maria Elena Gomez Navarro 12707 SE Bobby Bruce Ln. Boring, OR 97009

Maria De Jesus Gomez 523 N. Angelino Ave Azusa, CA 91702

Jose Gomez Navarro 100 Tuttle Rd. Grandview, WA 98930

Aurelio Gomez Navarro 6978 Hannegan Rd. Lynden, WA 98264

Ricardo Gomez 1035 W 15th Pl Kennewick, WA 99337

Griselda Gomez 1035 W. 15th Pl Kennewick, WA 99337

On April 24, 2026, this Court entered an order terminating the trust and relocating the Subject Property from the Trust, and for the non-existence of the Trust.

Facts re: Intestate Succession Petition by Lozano - PPR054058

On April 23, 2026, Sonia Lozano filed a separate action in PPR054058 to determine succession to the Subject Property as a primary residence.

The PPR054058 matter noted nine (9) heirs the estate:

1. Sonia Lozano 373 E. Worth Ave. Porterville, CA 93257
2. Guadalupe Gomez 8781 Emerald Rd. Sunnyside, WA 98944
3. Maria Elva Gomez 4021 NE 65th Ave. Vancouver, WA 98661
4. Maria Elena Gomez Navarro 25120 145th Pl SE Monroe, WA 98272
5. Maria De Jesus Gomez 523 N. Angelino Ave. Azusa, CA 91702

6. Jose Gomez Navarro 100 Tuttle Rd. Grandview, WA 98930

7. Aurelio Gomez Navarro 6978 Hannegan Rd. Lynden, WA 98264

8. Ricardo Gomez 1035 W. 158 Pl. Kennewick, WA 99337

9. Griselda Gomez 1035 W. 15M Pl. Kennewick, WA 99337

Further, the PPR054058 petition attached assignment of entire interest in the estate documents for 2. Guadalupe Gomez, 3. Maria Elva Gomez, 4. Maria Elena Gomez Navarro, 5. Maria De Jesus Gomez, 6. Jose Gomez Navarro 7. Aurelio Gomez Navarro, 8. Ricardo Gomez and 9. Griselda Gomez.

Likewise, notice of the hearing on the petition in PPR054058 was provided to those nine (9) persons, including Sonia Lozano, listed above at the same addresses provided.

On May 28, 2026, this Court entered an order determining succession to the Subject Property in PPR054058 in favor of Sonia Lozano.

Facts re: Motion to Void Judgment by Maria Gomez Sanchez

On July 27, 2026, Maria Gomez Sanchez filed this motion to void judgment entered in this matter as to the determination no trust existed and to direct conveyance of the Subject Property to the Trust.

The facts stated in the motion are verified by Maria Gomez Sanchez and state that Maria Gomez Sanchez is the duly appointed and currently serving trustee of the Trust created by Decedent via written declaration. (Motion ¶¶1, 2 – Ex. A.) Maria Gomez Sanchez indicates she was appointed as primary successor trustee upon the death of the Decedent and that the Trust became irrevocable upon Decedent's passing. (Motion ¶¶4, 5.)

The motion further states Decedent acquired title the Subject Property in 1996 via a grant deed and that on May 22, 2022, Decedent recorded a quitclaim deed transferring the Property to the Trust. (Motion ¶¶8-10 – Exs. C and D.)

The motion further notes that Maria Gomez Sanchez, sister of Sonia Lozano and daughter of Decedent, is not on the list of persons provided notice of the Petition in this matter. (Motion ¶¶14, 16, 17.)

The motion notes that Maria Gomez Sanchez was not on the list of persons provided notice in PPR054058 and that no assignment of interest was executed by Maria Gomez Sanchez or attached to the petition in PPR054058. (Motion ¶¶19-24.)

Therefore, the motion seeks to void the judgment and orders in this matter pursuant to Code of Civil Procedure section 473(d)

The response and petition in opposition by Sonia Lozano does not appear to address the service and notice issues, but instead seeks to invalidate the Trust on capacity and undue influence grounds.

Authority and Analysis

Voiding the Judgment

Code of Civil Procedure section 473(d) provides:

The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.

In *Pittman v. Beck Park Apartments Ltd.* (2018) 20 Cal.App.5th 1009, 1020 the appellate court described the process for a Section 473(d) determination as follows:

"In determining whether an order is void for purposes of section 473, subdivision (d), courts distinguish between orders that are void on the face of the record and orders that appear valid on the face of the record but are shown to be invalid through consideration of extrinsic evidence. This distinction may be important in a particular case because it impacts the procedural mechanism available to attack the judgment [or order], when the judgment [or order] may be attacked, and how the party challenging the judgment [or order] proves that the judgment [or order] is void. [Citation.] An order is considered void on its face only when the invalidity is apparent from an inspection of the judgment roll or court record without consideration of extrinsic evidence. [Citation] "[t]o prove that the judgment is void [on its face], the party challenging the judgment is limited to the judgment roll, i.e., no extrinsic evidence is allowed"; [Citation.] There is no time limit to attack a judgment void on its face. [Citations.] If the invalidity can be shown only through consideration of extrinsic evidence, such as declarations or testimony, the order is not void on its face. Such an order must be challenged within the six-month time limit prescribed by section 473, subdivision (b), or by an independent action in equity. [Citation.]"

In *Estate of Buckley* (1982) 132 Cal.App.3d 434, 450, fn. 4, the court noted:

The items comprising the judgment roll in a probate action are defined in Probate Code section 1242 in pertinent part as follows: "The following papers, without being attached together, shall constitute the judgment roll in the proceedings mentioned in this code:

"1. The petition or application or contest or report or account which initiates a particular proceeding; any order directing notice to be given of the hearing thereof; any notice of the hearing thereof, or any order to show cause made thereon, with the affidavits showing such publication, posting or mailing of the notice or order as may be required by law or the order of the court; the citation, in case no answer or written opposition is filed by a party entitled, by law or order of court, to notice of the proceeding by citation, with the affidavit or proof of service thereof, and if service of such citation is made by publication, the affidavit for such publication and the order directing publication; any finding of the court or referee therein; the order or judgment made or rendered therein; and the letters testamentary or of administration, if any." (*Italics in original.*)

The court in *Brown v. Williams* (2000) 78 Cal.App.4th 182, 186 noted that a judgment may be void "...because the judgment or order violated a party's due process rights to notice and opportunity to be heard. (§ 473, subd. (d))"

Here, a review of the judgment roll, including the Petition itself indicates to the Court that moving party Maria Gomez Sanchez did not receive notice of the Petition in this matter. The response appears to concede no such service or notice was provided, arguing instead that the Trust should be invalidated due to capacity and undue influence, which necessarily recognizes the existence of the Trust.

As such, the judgment is void.

Probate Code section 859 and the Petition by Sonia Lozano to Invalidate Trust

Probate Code section 859 states:

"If a court finds that a person has in bad faith wrongfully taken, concealed, or disposed of property belonging to a conservatee, a minor, an elder, a dependent adult, a trust, or the estate of a decedent, or has taken, concealed, or disposed of the property by the use of undue influence in bad faith or through the commission of elder or dependent adult financial abuse, as defined in Section 15610.30 of the Welfare and Institutions Code, the person shall be liable for twice the value of the property recovered by an action under this part. In addition, except as otherwise required by law, including Section 15657.5 of the Welfare and Institutions Code, the person may, in the court's discretion, be liable for reasonable attorney's fees and costs. The remedies provided in this section shall be in addition to any other remedies available in law to a person authorized to bring an action pursuant to this part."

"The language of Probate Code section 859 is not ambiguous in specifying when a bad faith finding is necessary for double damages." (Keading v. Keading (2021) 60 Cal.App.5th 1115, 1128.) "The statutory language contains three different . . . categories of conduct that can support double damages, each of which is separated by the conjunction 'or.' The first two categories require a separate finding of bad faith but the third one . . . does not." (Id. at 1128-1129.) Under the third category, therefore, double damages may be awarded without a finding of bad faith if the property was taken, concealed, or disposed of through the commission of elder or dependent adult financial abuse as defined in section 15610.30 of the Welfare and Institutions Code. (Id. at 1128-1130.)

"Section 859 also applies to real property... Suppose a petitioner seeks to recover title to residential real estate valued at \$100,000. If he prevails, the trial court will order the necessary reconveyance of title. If the opposing party acted in bad faith when transferring title to herself, she will be liable for \$200,000."

(Estate of Ashlock (2020) 45 Cal.App.5th 1066, 1074.)

At oral argument at the initial hearing on this matter, counsel for Sonia Lozano requested that this Court set over the issues of the existence of the trust, the section 859 damages and Sonia Lozano's challenges thereto under capacity and undue influence grounds at the same time.

The Court takes the position that the Probate Code section 859 damages cannot be adjudicated on a motion, but instead require a petition pleading the relief requested. The Court has before it only Sonia Lozano's petition challenging the Trust.

The Court notes it makes no order here except as to the voiding of the judgment previously entered in this case.

The remaining relief requested by the motion is denied without prejudice as the issues of section 859 damages, as well as reasonable fees and costs, would appear to be determinable only on a petition alleging such recovery and proof of the allegations therein.

The Court, therefore, will conduct a case management conference at this hearing to set an evidentiary hearing on the petition by Sonia Lozano challenging the Trust on capacity and undue influence grounds. The Court intends to set the evidentiary hearing with sufficient time to conduct discovery and/or permit the filing of any petition as to the section 859 damages, and any other such relief as requested.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the

court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.